

~/terms

Terms of Business

AI-assisted programming and software engineering services

~/parties

Provider	Nico Meihuizen, operating under the trading name meihuizen.ai
Legal form	Natural person. No company registration exists at the date of these Terms. See <i>change of contracting party</i> below.
Address	Cruquiuskade 251, 1018 AM Amsterdam, Netherlands
Registration	None issued at the date of these Terms
VAT / TIN	None issued at the date of these Terms
Contact	info@meihuizen.ai · meihuizen.ai
Effective date	_____
Applies to	All AI-assisted programming and software engineering services provided by the Provider

~/change-of-contracting-party

The Provider is registering **MB Meihuizen AI**, a *mažoji bendrija* under the law of the Republic of Lithuania. That company does not yet exist and is not a party to these Terms. Until it is registered, the Provider contracts as a natural person and is personally responsible for performance.

On registration, the Provider may transfer the engagement, with all rights and obligations under these Terms, to MB Meihuizen AI by written notice to the Client. The Client consents to that transfer in advance, on two conditions: that the commercial terms of the engagement are otherwise unchanged, and that the Provider remains personally liable for anything arising before the date of transfer. The Provider will notify the Client of the company code and VAT number once issued.

~/scope-of-services

These Terms of Business (“Terms”) govern the provision of software development, programming and related engineering services (the “Services”) by the Provider (“Provider”, “we”, “us”) to the client named in the applicable proposal, statement of work or order (“Client”, “you”). These Terms apply to every engagement unless expressly varied in a signed statement of work, and they incorporate by reference any proposal document issued to the Client.

The Provider delivers software engineering work using an AI-native workflow: large language model (“LLM”) tools, AI coding assistants, and autonomous or semi-autonomous coding agents are used throughout design, implementation, testing, documentation and review. By engaging the Provider, the Client acknowledges and accepts this working method as the default delivery approach, subject to the disclaimers set out below.

~/nature-of-ai-assisted-work

AI output is a draft, not a guarantee. Code, documentation, tests, configuration and any other artifact produced with the assistance of AI tools may contain errors, omissions, outdated assumptions, security weaknesses or plausible-but-incorrect content (“hallucinations”). All AI-assisted output is treated as a first draft and is subject to the Provider’s professional review before delivery, but professional review does not eliminate the possibility of defects.

- **No warranty of error-free or bug-free code.** The Provider applies reasonable skill, care and testing appropriate to the agreed scope, but does not warrant that any deliverable, whether AI-assisted or hand-written, is free of bugs, vulnerabilities or unintended behaviour.
- **Third-party training data and incidental similarity.** AI coding tools are trained on large public and licensed datasets. While the Provider takes reasonable care in reviewing generated output, the Provider cannot fully warrant that AI-generated content is free of incidental similarity to pre-existing third-party code, and makes no representation as to the intellectual property provenance of any underlying AI model.
- **Security and compliance review remains the Client’s responsibility.** AI-assisted code is not a substitute for independent security review, penetration testing or regulatory compliance assessment, particularly before deployment to production or regulated environments.
- **Human oversight.** A qualified engineer reviews AI-generated output as part of the Provider’s standard process; however, final acceptance testing and sign-off by the Client, as described below, remains an essential part of the quality assurance process.
- **Opt-out.** A Client that does not wish AI tooling to be used on a given engagement, or that requires specific AI tools to be excluded (for example for confidentiality reasons), must state this in writing before work begins; this may affect timeline and fees.

~/client-responsibilities

The Client agrees to:

- Provide timely feedback, access, credentials, test data and environments reasonably required to perform the Services.
- Carry out its own final acceptance testing, security review and regulatory or compliance validation before relying on any deliverable in a production, safety-critical or regulated context.
- Maintain independent backups of its own systems, code and data, and avoid submitting data it is not authorised to share to any third-party AI tool.
- Promptly notify the Provider in writing of any suspected defect, security issue or unintended behaviour discovered in a deliverable.

~/data-and-confidentiality

Each party will keep the other’s confidential information confidential and use it only to perform or receive the Services, except where disclosure is required by law. The Provider will use commercially reasonable AI tooling and will not knowingly submit Client trade secrets, personal data or regulated data to a third-party AI system unless the Client has agreed to this in writing. Where personal data is processed in the course of the Services, each party will comply with its obligations under the EU General Data Protection Regulation (GDPR) and applicable national data protection law.

~/intellectual-property

Subject to full payment of all invoiced fees, the Provider assigns to the Client all intellectual property rights in the custom deliverables created specifically for the Client under the engagement. Excluded from this assignment are: (a) the Provider's pre-existing tools, frameworks, snippets and know-how; and (b) third-party and open-source components, which remain licensed under their respective terms. The Provider does not warrant clear title to elements produced by third-party AI systems trained on public data, and recommends that Clients conduct independent IP due diligence for high-risk or commercially sensitive use cases.

~/warranty-disclaimer

Except as expressly stated in these Terms or in a signed statement of work, the Services and all deliverables are provided "as is" and "as available", to the maximum extent permitted by applicable law, without warranties of any kind, whether express, implied or statutory, including implied warranties of merchantability, fitness for a particular purpose, non-infringement, or that the Services will be uninterrupted, error-free or fully secure.

~/limitation-of-liability

Full and comprehensive limitation. To the maximum extent permitted by applicable law, this clause represents the entire and exclusive allocation of risk between the parties. It applies to every theory of liability, including contract, tort (including negligence), strict liability and statute, and to every type of claim arising out of or related to the Services, the deliverables or these Terms.

- **Aggregate cap.** The Provider's total aggregate liability arising out of or related to an engagement shall not exceed the total fees actually paid by the Client to the Provider under that engagement in the three (3) months preceding the event giving rise to the claim.
- **No indirect or consequential damages.** In no event will the Provider be liable for any indirect, incidental, special, consequential, exemplary or punitive damages, or for lost profits, lost revenue, lost data, loss of business or loss of goodwill, even if advised of the possibility of such damages.
- **AI tooling and third-party services.** The Provider is not liable for outages, errors, data handling practices or output of third-party AI platforms, cloud providers or other third-party services used in delivering the Services, beyond the Provider's own reasonable selection and use of such tools.
- **Client-side reliance.** The Provider is not liable for losses arising from the Client's deployment of a deliverable without completing the acceptance testing, security review or compliance validation described in *client-responsibilities*.
- **Mandatory law carve-out.** Nothing in these Terms limits or excludes liability that cannot be limited or excluded under mandatory Netherlands or EU law, including liability for death or personal injury caused by negligence, fraud or wilful misconduct.

~/indemnification

Each party will indemnify and hold the other harmless from third-party claims arising from that party's breach of these Terms, gross negligence or wilful misconduct, subject in each case to the limitations of liability set out above.

~/fees-and-payment

Fees, structure and payment terms are as set out in the applicable proposal or statement of work. Unless stated otherwise, invoices are due within fourteen (14) days of issue; amounts not paid when due may accrue statutory interest under Netherlands law, and the Provider may suspend Services until overdue amounts are settled.

~/termination

Either party may terminate an engagement for convenience on fourteen (14) days' written notice, or immediately for the other party's uncured material breach. On termination, the Client will pay for Services performed and expenses properly incurred up to the effective date of termination.

~/governing-law-and-disputes

These Terms are governed by the laws of the Netherlands, without regard to conflict-of-law principles. The parties will first attempt to resolve any dispute in good faith; failing resolution within thirty (30) days, the dispute will be submitted to the exclusive jurisdiction of the competent courts of Amsterdam, the Netherlands.

~/general-provisions

- **Entire agreement.** These Terms, together with the applicable proposal or statement of work, constitute the entire agreement between the parties regarding the Services and supersede prior discussions on the same subject.
- **Amendments.** Any amendment must be made in writing and signed by both parties.
- **Severability.** If any provision of these Terms is held unenforceable, the remaining provisions continue in full force and effect.
- **Assignment.** Neither party may assign these Terms without the other's prior written consent, except as provided in *change-of-contracting-party* above and except to a successor in a merger, acquisition or sale of substantially all assets.
- **Force majeure.** Neither party is liable for delay or failure to perform caused by events beyond its reasonable control.

~/acceptance

By signing below, or by engaging the Provider under a proposal or statement of work that references these Terms, the Client confirms it has read, understood and agrees to be bound by these Terms of Business.

Client signature: _____ Date: _____

Name / Title: _____

Nico Meihuizen: _____ Date: _____

Trading as meihuizen.ai

This document is a general-purpose template provided for informational convenience. It does not constitute legal advice, and independent legal review is recommended before use, particularly regarding jurisdiction-specific consumer-protection, data-protection and liability rules that may apply to a given engagement.